

GUEST LIST LUXURY PHOTO BOOTH

guestlistbooth.com

PHOTO BOOTH SERVICE AGREEMENT

This Service Agreement ("Agreement") is entered into between Guest List Luxury Photo Booth, a sole proprietorship based in Vinings, Georgia ("Guest List," "we," or "us"), and the client named in the Booking Summary ("Client," "you"). These terms apply to every booking. The details of your event are in your Booking Summary.

1. Booking Summary & Event Details

The details specific to your booking are recorded in a one-page Booking Summary: Client and contact information, event date, start and end times, venue and address, language preference, selected package, add-ons and Extra Hours, and the total, deposit, and balance. The Booking Summary is part of this Agreement. Any reference in this Agreement to information given in Section 1 means the Booking Summary.

2. Packages, Add-Ons & Pricing

Guest List offers the packages and add-ons below. Prices are before Georgia sales tax. Client's selections are recorded in the Booking Summary.

- The Social — 2 hours — \$399 — digital photos, GIFs & boomerangs, photo filters & digital stickers, custom template, instant sharing, online gallery — Deposit: \$150
- The Signature — 3 hours — \$549 — + priority date hold, guest lead capture — Deposit: \$200
- The Celebration — 4 hours — \$749 — + everything in The Signature (including priority date hold and guest lead capture), branded start screen, curated prop styling — Deposit: \$250

Priority Date Hold (included with The Signature and The Celebration): Client's event date receives priority scheduling. If Guest List has a conflict involving the same date or time, bookings with Priority Date Hold are honored before bookings without it, and Client's reschedule request under Section 4 receives first priority for new date availability. Priority Date Hold does not extend the service window, change the deposit, or change the cancellation terms.

Optional add-ons:

- Extra Hour: \$125 each (up to 2 per booking), available with any package
- Guest Lead Capture: \$60, available with The Social (included in The Signature and The Celebration)
- Branded Start Screen: \$60, available with The Social and The Signature (included in The Celebration)
- Curated Prop Styling: \$75, props selected and arranged to match your event theme and colors, available with The Social and The Signature (included in The Celebration)

Add-on prices are in addition to the package price and are part of the Total Package Price for all purposes under this Agreement, including Sections 3 and 4. An add-on already included in a package cannot be purchased with that package. Client requests add-ons and Extra Hours on the Event Details form (see Section 7). Guest List will then send Client an invoice and an updated Booking Summary listing them, and they are confirmed when Client pays the invoice that lists them. That invoice is due within 2 days of the invoice date and in any case before service begins. Extra Hours must run directly before or after the contracted service window and are subject to attendant availability, which Guest List will confirm in writing.

3. Payment Terms

- A non-refundable flat deposit, in the amount listed for the selected package in Section 2, is due at the time of booking to reserve the date.
- The remaining balance, plus applicable Georgia sales tax on the full package price, is due no later than 7 days before the event date.

- Payment is accepted via the link provided at booking or invoicing. Failure to pay the balance by the due date may result in cancellation of services and is treated as a cancellation by Client under Section 4.
- Client authorizes Guest List to collect the deposit, balance, and any other amounts due under this Agreement through the payment methods provided. If Client believes a charge is incorrect, Client agrees to contact Guest List and allow 10 business days to resolve it before disputing the charge with a bank or card issuer. Guest List may submit this Agreement, booking and acceptance records, and proof of service as evidence in any dispute, and Client is responsible for chargeback fees and related costs arising from a dispute of a charge that is valid under this Agreement.

4. Cancellation & Rescheduling

- The deposit is non-refundable if Client cancels or does not proceed. It compensates Guest List for holding the date and declining other bookings.
- Client may reschedule the event date one (1) time at no additional charge, provided Guest List receives written notice at least 14 days before the original event date and the new date is available. Any further reschedule, or one requested with less than 14 days' notice, is treated as a cancellation unless Guest List agrees otherwise in writing.
- If Client cancels 30 or more days before the event, the deposit is forfeited and nothing further is due.
- If Client cancels 14 to 29 days before the event, 50% of the total package price is due, with the deposit applied toward it.
- If Client cancels fewer than 14 days before the event, or the event does not proceed for any reason attributable to Client, 100% of the total package price is due, with the deposit applied toward it.
- Client acknowledges that Guest List holds the event date and declines other bookings, that its losses from a cancellation are difficult to calculate, and that the amounts above are a reasonable estimate of those losses and not a penalty.
- Guest List may cancel this Agreement at any time before the event, at its discretion for any reason, including a scheduling conflict, prior booking, illness, or unsafe conditions (see Sections 11 and 12), by notice to Client as soon as reasonably practicable. Except for a cancellation under Section 7, Guest List will refund all amounts paid, including the deposit, within 10 business days (or, at Client's option, reschedule to another available date), and will use reasonable efforts to suggest a replacement vendor.
- That refund or reschedule is Client's sole and exclusive remedy for a cancellation by Guest List. Guest List has no further liability, including for replacement costs, deposits paid to other vendors, or consequential damages.

5. Overtime

Additional time beyond the contracted package may be purchased on-site, subject to attendant availability, at a rate of \$125 per hour, prorated in 15-minute increments, with any partial increment rounded up to the next full 15-minute increment. Overtime is subject to applicable Georgia sales tax. Guest List's attendant will provide a payment link or QR code, and overtime must be paid at the time of service before continuing.

6. Travel, Parking & Venue Costs

Travel within a 30-mile radius of Vinings, GA is included in all package prices. Travel beyond 30 miles is billed at \$1.00 per mile (round trip, calculated from Vinings), payable with the final balance.

Client is responsible for parking fees and for any load-in, elevator, security, or venue access fees, and for any fee the venue charges for certificates of insurance or additional-insured endorsements. Guest List may add these to the final invoice at cost.

7. Client Responsibilities

Client is responsible for ensuring the following are available at the venue prior to Guest List's arrival:

- A dedicated space of at least 8 ft x 8 ft for the booth setup
- Access to a standard electrical outlet within reasonable cable distance

- Venue access for setup beginning 60–90 minutes before the event start time
- Any venue-required insurance documentation coordinated in advance (Guest List will provide a Certificate of Insurance upon request)

Client also agrees that:

- The service window is fixed to the contracted start and end times. Late venue access, delays, or late starts caused by Client, the venue, or other vendors do not extend the service window, and no refund or credit is due for time lost.
- For outdoor events, Client will provide a level, covered space protected from rain, wind, and direct sun. If Client does not, Guest List may shorten, relocate, or cancel service without refund.
- The event address, times, and contact person given to Guest List are accurate. Client will promptly notify Guest List of any change, and additional travel or setup time caused by a change may be charged.
- The answers Client gives on the Event Details form, including venue details, contacts, template details, attendant placement preference, and any add-ons or Extra Hours requested, form part of this Agreement and are incorporated into the Booking Summary. Client will complete and return the form no later than 7 days before the event, or immediately after booking if the event is fewer than 7 days away, and is responsible for its accuracy. If the form is not returned by then, Guest List may send a reminder by email or text and, if Client does not respond within 24 hours, may either proceed with its standard setup or cancel the booking. If Guest List cancels for this reason, the deposit is not refunded and no further amount is due. An attendant placement preference is a request only and may be adjusted for safety or equipment protection under Sections 8 and 11.

8. Equipment & Damage

8.1 Equipment Defined. "Equipment" means every item Guest List brings to or uses at the event, including the iPad and protective case, booth stand and mounting hardware, ring light, power supplies, cables, hotspot and battery packs, props, signage, and related software. All Equipment remains the sole property of Guest List at all times.

8.2 Operation & Access. Only Guest List's attendant may operate, adjust, move, reposition, connect, or disconnect Equipment. Client and guests may not change device settings, exit the booth software, unplug or move any Equipment, or use it for any purpose other than as directed by the attendant.

8.3 Guest Conduct. Client is responsible for the conduct of all guests, vendors, staff, and invitees at the event, including anyone under the influence of alcohol. Client shall ensure that (a) no food, drink, or other liquid is placed on or near the Equipment; (b) no one sits on, leans on, climbs, hangs from, or pulls on the Equipment; and (c) no glitter, confetti, streamers, sparklers, fog, or similar materials are used within 10 feet of the Equipment without Guest List's prior written approval.

8.4 Responsibility for Loss & Damage. From the time Guest List begins setup until load-out is complete, Client is financially responsible for any loss, theft, damage, or destruction of Equipment caused by Client or by any guest, vendor, staff member, or other attendee, whether intentional, negligent, or accidental, other than ordinary wear from proper use.

8.5 Repair & Replacement Cost. Client shall pay the greater of the actual repair cost or the replacement cost of the affected Equipment at then-current retail price, plus shipping, expedited delivery, and reconfiguration fees.

8.6 Lost Bookings. If damage or loss of Equipment prevents Guest List from fulfilling other confirmed bookings, Client is also responsible for the documented lost revenue on those bookings, not to exceed the price of the affected bookings.

8.7 Documentation. Guest List may photograph or record the Equipment and setup area before, during, and after the event. Those records will be accepted as evidence of the Equipment's condition absent clear proof to the contrary.

8.8 Payment of Charges. Charges under this Section are due within 7 days of Guest List's written invoice. Unpaid amounts accrue interest at the maximum rate permitted by Georgia law from the due date, and Client shall also pay Guest List's reasonable collection costs, including attorneys' fees, to the extent permitted by law. Guest List may apply any deposit or other payment received toward such charges.

8.9 Right to Suspend Service. Guest List may suspend or end service immediately and remove the Equipment if the Equipment is being misused or endangered, or if the attendant is threatened or harassed (see also Section 11), without refund of any amount paid; any unpaid balance remains due.

9. Photo & Video Usage

Client grants Guest List permission to use photos, videos, and testimonials from the event for marketing purposes, including but not limited to social media, website, and advertising.

For any minors in attendance at the event, Client represents and warrants that Client has obtained, or will obtain, all necessary parental or guardian consent for such minors to be photographed and for those images to be used as described above. Guest List does not independently verify parental or guardian consent for individual event attendees and relies entirely on Client's representation in this regard.

10. Gallery, Content & Guest Data

10.1 Gallery. Galleries remain online for 90 days after the event, after which Guest List may delete them. Client is responsible for downloading all files within that period. Guest List is not responsible for loss of files after that period or for outages of third-party platforms.

10.2 Ownership & License. Guest List retains all copyright in the photos, videos, GIFs, templates, and designs it creates. Client and guests receive a personal, non-commercial license to use and share them. Any commercial use requires Guest List's prior written permission.

10.3 Guest Contact Information. Contact details entered at the booth are used to deliver photos and, where the package includes lead capture, are provided to Client. Client is solely responsible for obtaining any consent required to contact guests for marketing and for complying with applicable law. Guest List does not sell guest contact information, and is not responsible for guests who do not receive their photos because of incorrect contact information, carrier or spam filtering, or device issues.

11. Attendant Safety & Conduct

11.1 Respectful Treatment. Guest List's attendant must be treated with respect and be able to work safely. Harassment of any kind is not permitted, including sexual comments or advances, unwanted physical contact, following or cornering, repeated requests for personal contact information, intimidation, threats, or discriminatory remarks. Client is responsible for the conduct of guests, vendors, and staff toward the attendant and will promptly address any problem when asked.

11.2 Right to Pause or End Service. If harassment, threats, or any situation the attendant reasonably and in good faith believes is unsafe occurs, the attendant may immediately pause, relocate, or end service and leave the venue with the Equipment. Service ended under this Section is treated as fully delivered: no refund or credit is owed, and any unpaid balance remains due.

11.3 Safe Working Conditions. Client will provide (a) well-lit vehicle parking reasonably close to the load-in entrance; (b) a safe, clear route for load-in and load-out; (c) a contact person who is present and immediately reachable throughout service; and (d) for events at private residences or ending after 10:00 p.m., a host or venue staff member within sight of the booth area.

11.4 Safety Companion. Guest List may bring one additional person to assist with setup, breakdown, and safety. That person is not a guest, requires no food or seating, and does not count toward any guest or venue headcount.

11.5 Pre-Event Safety Review. Guest List may request venue details and photos before the event. If, based on objective conditions such as lighting, parking and load-in access, lack of security or staff, crowd or alcohol conditions, or prior incidents, Guest List reasonably determines the event cannot be served safely, it may require reasonable changes (for example, a different setup location, an earlier end time, or added security). If the changes are not made, Guest List may cancel before the event and will offer a reschedule date or refund the amounts paid, with no further liability.

11.6 Conduct-Based Decisions. Safety decisions under this Section are based only on objective conditions and conduct, are applied consistently to all clients, and are never based on the identity, race, ethnicity, religion, language, or background of Client or guests, or on the demographics of a neighborhood.

12. Liability, Indemnification & Force Majeure

- Guest List carries general liability insurance and will provide proof of coverage upon request.

- Guest List is not liable for delays or service interruptions caused by circumstances beyond its reasonable control, including but not limited to severe weather, venue power failure, acts of God, or venue access restrictions.
- Guest List may substitute equivalent equipment or a qualified attendant at any time without prior notice.
- Where Client indicates a Spanish language preference in the Booking Summary, Guest List will make reasonable efforts to assign a Spanish-speaking attendant. Attendant language ability cannot be guaranteed, and the unavailability of a Spanish-speaking attendant is not a breach of this Agreement or grounds for a refund.
- Photo quality depends on venue lighting, available space, and guest participation. Guest List does not guarantee particular images, poses, or numbers of photos.
- If Guest List fails to perform for any reason other than Client's breach, Client's sole and exclusive remedy is a refund of the amounts paid for the portion of services not delivered.
- Guest List is not liable for indirect, incidental, special, or consequential damages, including loss of enjoyment, emotional distress, or lost opportunity.
- In no event shall Guest List's liability exceed the total amount paid by Client under this Agreement.
- Client shall indemnify, defend, and hold harmless Guest List and its owner, employees, and agents from any claim, loss, liability, or expense (including reasonable attorneys' fees) arising out of (a) the acts or omissions of Client or Client's guests, vendors, staff, or invitees; (b) any injury to a person or damage to property at the event, except to the extent caused by Guest List's gross negligence or willful misconduct; (c) any claim by the venue arising from the event; or (d) Client's breach of this Agreement, including the representations in Section 9.

13. Governing Law

This Agreement is governed by the laws of the State of Georgia. Any disputes arising under this Agreement shall be resolved in Cobb County, Georgia.

14. General Provisions

- Entire Agreement: This Agreement, consisting of this Service Agreement and the Booking Summary, constitutes the entire agreement between the parties and supersedes any prior discussions or understandings, written or oral.
- Amendments: This Agreement may be changed only in a writing confirmed by both parties. Email confirmation is sufficient.
- Severability: If any provision is found unenforceable, it will be enforced to the maximum extent permitted and the remaining provisions stay in full effect.
- No Waiver: Failure to enforce any term is not a waiver of that term.
- Electronic Communications and Records: Client consents to receive event-related communications by email, phone call, and text message. Electronic records of this Agreement, the booking, acceptance, and payment are valid and may be used as evidence.

15. Method of Acceptance

- Agreement Documents: This Agreement consists of this Service Agreement and the Booking Summary issued for Client's event. If they conflict on event-specific details, such as the event date, start and end times, venue address, selected package, and the list and price of add-ons and Extra Hours, the Booking Summary controls. On all other matters, this Service Agreement controls. Add-ons and Extra Hours are confirmed when Client pays the invoice that lists them.
- By checking the acceptance box presented at the time of online booking and submitting payment of the deposit, Client agrees to be bound by all terms of this Agreement, which has the same legal effect as a handwritten or electronic signature.
- Guest List reserves the right, at its sole discretion, to require a fully executed electronic signature (via Zoho Sign or equivalent) in lieu of, or in addition to, checkbox acceptance — for example, for larger bookings, corporate clients, or bookings with custom terms.

- If a signature is requested under this section, Client signs the signature block on the Booking Summary. If the booking was confirmed by checkbox acceptance only, the signature block may be left blank; checkbox acceptance combined with deposit payment constitutes full agreement to these terms.

16. Referral Program (The VIP Pass)

- Referrer Reward: For each new client Client refers to Guest List who books, pays in full, and whose event takes place, Client may choose either (a) \$100 off a future Guest List booking, or (b) a randomly selected gift card or prepaid card with a value of \$25 or more. The pool of gift cards and prepaid cards is selected by Guest List and is subject to change.
- New Client Reward: A new client who names a referring client when booking may choose one of the following: (a) \$100 off the package price, (b) one free Extra Hour, or (c) a free Branded Start Screen (available with The Social and The Signature only). The reward is applied to the new client's Booking Summary and invoice. A \$100 discount is applied before sales tax and does not reduce the deposit amount.
- Referral Upgrade: After 3 completed referrals, Client may upgrade the package on a future booking to the next tier at no charge (The Social to The Signature, or The Signature to The Celebration). For The Celebration, the upgrade is one free Extra Hour instead. The upgrade is subject to date and attendant availability.
- Conditions: Rewards are issued only after the referred client's event takes place and is paid in full. Referred clients must be new clients. Self-referrals and referrals within the same household do not qualify. A reward cannot be combined with any other discount and cannot reduce a booking below \$0. A discount credit has no cash value and does not expire. No reward is owed if the referred booking is cancelled or does not proceed.
- Changes: Guest List may change or end the referral program at any time. Rewards already earned remain valid.